This **MUTUAL NON-DISCLOSURE AGREEMENT** is made and entered into as of _____ between _____ a Company incorporated under the Companies Act, 2013 and having its registered office at _____(hereinafter referred to as Service Provider) and _____, a Company incorporated under the Companies Act, 2013 and having its registered office at _____and the same is effective with effect from _____.

1. *Purpose*. The parties have entered into discussions regarding a potential services relationship whereby service provider may perform services for _____. In the course of our discussions, both the parties may disclose or have disclosed certain confidential technical and business information as further described below which, both the parties desire the other/receiving party to treat as confidential and further seek to restrict the use and disclosure of that information retroactively as well as prospectively whether or not they enter into an engagement or services relationship.

2. "*Confidential Information*" means all tangible and intangible information disclosed by either Party to the other Party that is reasonably understood as confidential or proprietary (whether marked or unmarked) and shall include, without limitation: (a) client or customer specific information (including name, location, scope of services provided by Disclosing Party for customer), employee names and terms of employment, business process, marketing strategies, business plans, trading information and activity, financial information related to the business, trade secrets, works of authorship, inventions, know-how, processes, techniques, software, source code, algorithms and schematics; (b) any other information regarding research, development, new services, products, marketing and selling plans, business plans, budgets, unpublished financial statements, business arrangements, prices, costs, suppliers and customers; (c) the existence of any business discussions, negotiations or agreements between the Company, its customers and service providers; and (d) any information regarding the skills and compensation of employees, contractors or other agents of the disclosing party.

3. Both the parties agree to regard and preserve as confidential all Confidential Information provided by the other party. Confidential Information shall also include all information and data relating to the purpose; which is obtained whether in writing, pictorially, in machine readable form, on disc, email or in any other form in connection with the discussions (including but without limitation, financial information, know-how, processes, ideas, whether patentable or not), schematics, trade secrets, technology, customer lists (potential or actual) and other customer-related information, supplier information, sales statistics, market intelligence, marketing, business working, operations, parent, subsidiaries, affiliates and other business strategies and other commercial information of a confidential nature.

4. In maintaining the confidentiality of Confidential Information hereunder, both the parties agree that they will not, without first obtaining the written consent of the other party, disclose or make available to any person (including all natural and legal persons, whether incorporated or not, firm or enterprise), reproduce or transmit, or use (directly or indirectly) for its own benefit or the benefit of others, any Confidential Information. A party may disclose any Confidential Information to its Directors, officers, employees or advisors on a “need to know” basis to enable them to evaluate such “Confidential Information” in connection with the Purpose.

5. Both the parties will ensure that the said employee(s) and /or the said person(s) shall maintain confidentiality with regard to the disclosed Confidential Information, and shall issue suitable instructions and/or get suitable written undertakings or agreements executed to bind its employees and / or the said person(s) to the same obligations of confidentiality.

6. Save and except for the purposes mentioned in clause 4 above, both the parties further agree that they shall not make copy(ies) or reproduce in any way (including without limitation store in any computer or electronic system any written material/documents) such Confidential Information.

7. It is mutually acknowledged and agreed that an information shall not be considered "Confidential Information" and the parties shall have no confidentiality obligations under this Agreement with regard to

that information to the extent that such information is: (a) at the time of disclosure was already in the public domain; or (b) already known to the Contractor free of any confidentiality obligation at the time it is obtained from the other party; or (c) after disclosure is or becomes publicly known or available through no wrongful act of the receiving party; or (d) rightfully received from a third party without restriction or (e) is required to be disclosed pursuant to a requirement of a governmental agency or law so long as the party provides other party with timely prior written notice of such requirement.

8. Both the parties further agree to indemnify and keep indemnified each other against all costs, charges and expenses incurred by the other party due to actual loss and damage which the other party may suffer as a result of any breach of this Agreement by the party.

9. Both the parties further agree that upon termination/expiry of this Agreement or at any time during its currency, at the request of the other party, they shall promptly deliver to the other party all copies of the Confidential Information in its possession or under its direct or indirect control, and shall destroy all memoranda, notes and other writings prepared by them or their Directors, officers, employees or advisers based on the Confidential Information. Provided that the obligations under this Agreement shall always survive the completion/termination/expiry of this Agreement.

10. Both the parties acknowledge and agree that in the event of a breach or threatened breach by either party, of the provisions of this Agreement, the other party may not have an adequate remedy in money or damages and accordingly shall be entitled to injunctive relief against such breach or threatened breach by the party.

11. NON-SOLICITATION: For a period of three (3) years from termination of this Agreement, neither party shall directly or indirectly solicit any employees of the other for another employment opportunity or interfere with or otherwise encourage any employee to alter or terminate their relationship with the other party.

12. *Miscellaneous*. Recipient may not assign or delegate any part of this Agreement, including by succession or operation of law and any such assignment is null and void. This Agreement shall be exclusively governed by the jurisdiction of _____, India without reference to conflict of laws principles. This document contains the entire agreement between the parties with respect to the subject matter hereof. Any failure to enforce any provision of this Agreement shall not constitute a waiver thereof or of any other provision. This Agreement may not be amended, nor any obligation waived, except by a writing signed by both parties.

Signed :-

_____
_____
By: _____
Date:

_____
_____
By:
Date: